

Legitimate Interests Assessment: Event photography and media

Description of the Processing:

Taking photography and video of attendees at Information Security Forum (ISF) conferences and events. This assessment is based on the assumption that no media will be used out of context, nor where the publication of such media may result in any harm or distress to the individual.

Media taken and recorded would be subsequently used in pre- and, post-event promotional material (printed), social media channels and online, but not sold for re-use by third-parties.

Part 1: Purpose test

- The data is processed to record activity at events for subsequent sharing with attendees and other promotional purposes.
- The benefit is to demonstrate the success of the events and highlight the quality of venues, and participants as part of the event value proposition in future marketing material.
- This benefit is for ISF, though links to images and media from participants could be used to their benefit.
- The events business model is dependent on being able to share the success and quality of previous events, so visual marketing material providing evidence of the experience is a significant marketing requirement for the business.
- Compliance is based on UK GDPR. Local laws surrounding individual image rights may need to be reviewed in other global locations.

Part 2: Necessity test

- Photography and media are an essential part of event marketing and promotion.
- “A picture speaks a thousand words”, especially in the world of social media. The same impact and benefits are not possible without the use of media.

Part 3: Balancing test

- Some attendees may consider their attendance at an event private and resent the intrusion of a photographer – just because they are attending doesn’t mean they want their image used to promote it.
- Photographing a crowd will likely result in capturing the diversity of the audience, including gender, race and visible disability information.
- The information does not involve the processing of children’s data.
- There is an existing relationship with all attendees – they are members or customers of ISF.
- Transparency is paramount – it is suggested that attendees should be informed of the presence of photographers and videographers:

Reasonable expectations

- Attendees are attending in a professional capacity – many will have experience ISF conferences (and others) with the same level of photography and media recording previously.

Likely impact

- There will be a loss of privacy, however, attendees at a global conference will be aware that the event, though not public, will be well attended and should not be considered private.

- From previous events with thousands of attendees, a minimal number have raised photography and video as an issue.

Possible safeguards to minimise impact:

- Ensure photographers/videographers are easily identifiable and know to respect the wishes of anyone asking not to be photographed/videoed.
- Provide a mechanism for “opting-out” of photographs and videos. For example, a “No photos” badge, a different coloured lanyard, or even no photo areas within the event itself.
- Provide a mechanism for data subjects to request deletion of their images.
- Add the retention period for event photographs and videos to the organisation’s retention schedule – for media from events, this can be permanent, though consideration should be made as to whether all images and videos are required permanently (data minimisation).
- Ensure images are stored securely and that guidelines are in place for their use.
- Consider on a case-by-case basis if individual consent is required to publish, especially where individuals are prominent and easily identifiable.
- Enhance signage and transparency statements relating to the processing:
 - Prior to the event (see suggestions in Appendix A)
 - Event marketing information
 - Ticket booking forms
 - Event tickets and booking confirmations
 - At the event
 - Entrances to the venue
 - At registration
 - Locations where photography is taking place
 - In “housekeeping” announcement
- Events in overseas locales may need specialised guidance on local laws relating to image rights.

The decision

Legitimate interests can be relied on for this processing.

- The use of images to record and promote events is not focused on individuals, but on the attendees as a collective and is a valuable tool providing significant benefit to the business (marketing) in a key business area (events).
- Data subjects can be provided with transparency statements at various stages of their transactions and attendance, as well as having mechanisms to object to processing and to have their data removed.
- Overall, the risk to data subjects is assessed as low.

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Date	24-05-22

Keep a record of this LIA and keep it under review.

Appendix A: Suggested transparency statements

In written communications

Information Security Forum would like to inform you that throughout *[Event Name]*, we will employ official photographers to take photographs and videos of the event, which will include participants and their activities. These will be used in our printed publications and/or online (including on our social media channels) or in future publicity materials.

We ask all participants to please be aware of any signage or information which will identify where photography is taking place and if you do not wish to be photographed or filmed in the above manner, please inform the Event Coordinator as soon as possible before or during the event in order for provisions to be made.

Information Security Forum will not publish names or personal details alongside any pictures unless specific permission has been requested and granted from these parties.

For further information regarding data protection and your rights please see our Privacy Notice: <https://www.securityforum.org/privacy-notice-isf-live/>

Please contact the organisers at any time should you require further information, or if you wish Information Security Forum to stop using your images and/or to delete them.

Email: [email of event organiser]

Signage

Photographs and video will be taken in this location

If you do not wish your image to be potentially used by Information Security Forum, please inform the photographer, or contact a member of the event team.

Information Security Forum take photographs and videos of this event, including participants and their activities for use in our printed publications and/or online (including on our social media channels) or in future publicity materials.

Information Security Forum will not publish names or personal details alongside any pictures unless specific permission has been requested and granted from these parties.

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